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Case Number: 24PSCV01203 Hearing Date: September 16, 2026 Dept: G

Plaintiff Los Angeles County Metropolitan

Transportation Authority's Motion for Determination of Legal Issues Re:

Impairment of Access

Respondent:

Defendants Russell L. Fox and Linda K. Fox

TENTATIVE

RULING

Plaintiff

Los Angeles County Metropolitan Transportation Authority's Motion for Determination of Legal Issues Re: Impairment of Access is GRANTED IN PART and DENIED IN PART.

BACKGROUND

This

is an eminent domain action. Plaintiff

Los Angeles County Metropolitan Transportation Authority (LA Metro) seeks to acquire a property in the City of Industry near Valley Boulevard and Interstate 605 for the purpose of constructing a maintenance road. LA Metro alleges the City of Industry property is owned by defendants Russell L. Fox and Linda K. Fox (collectively, the Foxes), trustees of the Fox Family Trust dated July 12, 2001 (Fox Trust).

On

April 16, 2024, LA Metro filed the Complaint for eminent domain against the Foxes as trustees of the Fox Trust, all persons unknown, and Does 1 to 50.

On

July 8, 2024, the Foxes filed the Answer.

(On July 1, 2025, the court granted LA Metro's motion for judgment on the pleadings with leave to amend as to paragraphs 8 and 11 of the Answer and without leave to amend as to paragraph 12.)

On July 21, 2025, the Foxes filed the operative Amended Answer. (On February 19, 2026, the Foxes withdrew the affirmative defense raised by paragraph 11 of the Amended Answer, and on March 11, 2026, the court granted LA Metro's motion for summary adjudication as to the affirmative defenses raised by paragraphs 7, 8, and 9 of the Amended Answer.)

On

January 7, 2025, LA Metro filed this motion for determination. On May 29, 2026, the Foxes filed the opposition, and on June 4, 2026, LA Metro filed the reply. On June 24, 2026, the court continued the hearing on the motion for supplemental briefing. On July 17, 2026, LA Metro filed the supplemental moving brief. On August 7, 2026, the Foxes filed the supplemental opposition, and on August 12, 2026, LA Metro filed the supplemental reply.

The

case is set for a trial setting conference as to the compensation phase of trial and a continued hearing on the motion on September 16, 2026.

EVIDENTIARY

OBJECTION

LA

Metro objects to a portion of the declaration of the Foxes' counsel. The following objection is OVERRULED:

1.

ANALYSIS

LA

Metro moves for judicial determination of whether the property directly abuts the street, and even if it does, whether the property has a legal means of accessing the street. For the following reasons, the motion is GRANTED IN PART and DENIED IN PART.

Legal

Standard

“If

there is a dispute between plaintiff and defendant over an evidentiary or other legal issue affecting the determination of compensation, either party may move the court for a ruling on the issue. The motion shall be made not later than 60 days before commencement of trial on the issue of compensation.” (Code Civ.

Proc., § 1260.040, subd. (a).) Review of

a motion filed under Section 1260.040 is “the equivalent of ruling on a motion for nonsuit.” (Dina v. Dept. of

Transportation (2007) 151 Cal.App.4th 1029, 1047.) Under that standard, the court does not weigh evidence or make credibility determinations.

(See Darbun Enterprises, Inc. v. San Fernando Community Hospital (2015)

239 Cal.App.4th 399, 410.) Instead, the court

disregards the moving party’s conflicting evidence, assumes the truth of the

nonmoving party’s evidence, and resolves all presumptions, inferences,

conflicts, and doubts in the nonmoving party’s favor. (See Dina, supra, at 1047; see also Jumaane

v. City of Los Angeles (2015) 241 Cal.App.4th 1390, 1399.)

Discussion

As

a preliminary matter, the court must determine whether it may decide the issues subject to LA Metro’s motion pursuant to Code of Civil Procedure section 1260.040. As stated above, under that

statute, the issue must be an evidentiary or legal issue that affects the determination of compensation. (Code

Civ. Proc., § 1260.040, subd. (a).)

Here,

LA Metro’s motion requests that the court determine issues related to the property’s access to Valley Boulevard. (See

Mot., p. 2.) The court finds that whether

a property has legal access to a public street directly impacts its value, and

in turn, the value of just compensation for the property. (See City of Los Angeles v. Ricards

(1973) 10 Cal.3d 385, 388, commenting, “Property which requires substantial

expenditure to establish access thereto is obviously worth less to a potential

buyer than the identical property with access already provided.”) Courts may determine factual issues in a

motion under Section 1260.040, including those dealing with the physical

characteristics and configuration of real property. (See, e.g., *Dina v. Dept. of Transportation* (2007) 151 Cal.App.4th 1029, 1034.)

Accordingly,
the court finds that the issues regarding whether the property abuts Valley Boulevard and whether the property has a legal means of accessing Valley Boulevard are the proper subject of a motion for determination under Section 1260.040.

Whether
the Property Abuts Valley Boulevard

LA
Metro argues that the court must determine that the property does not abut Valley Boulevard. The court agrees.

“The
urban landowner enjoys property rights, additional to those which [they] exercise[] as a member of the public, in the street upon which [their] land abuts. Chief among these is an easement of access in such street. This easement consists of the right to get into the street upon which the landowner's property abuts and from there, in a reasonable manner, to the general system of public streets.” (*Breidert v. Southern Pacific Co.* (1964) 61 Cal.2d 659, 663; *Williams v. Los Angeles Ry. Co.* (1907) 150 Cal. 592, 594, noting that a property fronting the street has right of ingress and egress; *Bacich v. Bd. of Control* (1943) 23 Cal.2d 343, 351–352, stating that abutters' rights include the right to access the abutting street and the next intersecting street in order to access other public streets.) A property owner cannot claim an impairment of an abutters' right of access unless the property “directly” abuts a public street. (*Martis Camp Community Assn. v. County of Placer* (2020) 53 Cal.App.5th 569, 609–611.)

LA
Metro presents a diagram prepared by its engineer depicting the property. (See 12/17/2025 Haigh Decl., ¶ 3.) According to the diagram, the Foxes' property, labeled “fee acquisition,” does not abut Valley Boulevard; there is empty space between the property and the street. (12/17/2025 Haigh Decl., Exh. 1, p. 5.)

In

opposition, Russell L. Fox presents a copy of the director's deed and data sheet that the California Department of Transportation (Caltrans) provided to him when the Foxes purchased the property. (See

5/29/2026 R. Fox Decl., ¶ 2.) According

to the director's deed, one entire side of the property begins and ends at the "Northeasterly line of Valley Boulevard."

(5/29/2026 R. Fox Decl., Exh. 1, p. 4.)

According to the data sheet, "[a]ccess" to the property "is from Valley [Boulevard]." (5/29/2026 R. Fox Decl.,

Exh. 1, p. 8.) The data sheet also

contains a diagram that depicts the property next to a line labeled "Valley . .

. Blvd." without any space in between the property and the line. (5/29/2026 R. Fox Decl., Exh. 1, p. 9.) The Foxes also present evidence compiled and

labeled by their engineer, including a preliminary title report. (See 5/29/2026 Vahid Decl., ¶ 3.) The title report repeats the description of

the property from the director's deed noting that the property begins and ends at Valley Boulevard. (Compare 5/29/2026

Vahid Decl., Exh. 6, pp. 22, 28 with 5/29/2026 R. Fox Decl., Exh. 1, p. 4.)

Considering

the parties' briefs and oral arguments at the previous hearing, the court asked the parties to address in their supplemental briefs whether the property directly abuts the paved portion of Valley Boulevard, and by extension, the legal effect of abutters' rights. (See 6/24/2026

Min. Order, p. 1.) LA Metro's

supplemental brief asserts that the property does not abut the paved portion of Valley Boulevard. (See Supp. Mov.

Brief, p. 1, concluding that "at no point does the frontage of the Fox Property abut the paved portion of Valley Boulevard.")

The Foxes' supplemental brief does not address the question directly;

instead, the Foxes assert that at the very least, the property abuts the public right-of-way, which is part of the street.

(See Supp. Opp., pp. 2–3, citing L.A. County Code, § 16.04.100.) In the context of abutters' rights, which arise under common law, "street" is not a statutorily defined term of art. As such, the court gives "street" its ordinary meaning, referring to the paved portion of the road. Since the Foxes'

supplemental opposition and supporting supplemental evidence did not address whether the property touches the paved portion of the road, the court

interprets this silence as a concession that the property does not directly abut the paved portion of Valley Boulevard.

(See *Moulton Niguel Water Dist. v. Colombo* (2003) 111 Cal.App.4th 1210, 1215, stating that “[c]ontentions are waived when a party fails to support them with reasoned argument and citations to authority.”)

Therefore,

the court determines that the property does not directly abut Valley Boulevard. As a result, the Foxes do not enjoy abutters’ rights. (See *Martis Camp. Community Assn. v. County of Placer* (2020) 53 Cal.App.5th 569, 610, holding, “A nonabutting property owner does not have any special right to damages merely because access to a conveniently located street has been denied.”)

Whether

the Property Has a Legal Means of Accessing Valley Boulevard

LA

Metro argues that the court must determine that the property does not have a legal means of accessing Valley Boulevard because regulations preclude the installation of a legal access point.

The court disagrees.

“[Caltrans]

shall have full possession and control of all state highways and all property and rights in property acquired for state highway purposes.” (Sts. & Hy. Code, § 90.) “No state agency shall issue, utilize, enforce, or attempt to enforce any guideline, criterion, bulletin, manual, instruction, order, standard of general application, or other rule, . . . unless [it] has been adopted as a regulation and filed with the Secretary of State pursuant to this chapter.” (Gov. Code, § 11340.5, subd. (a).)

LA

Metro’s evidence demonstrates that the property is across the street from a ramp to Interstate 605. (See 12/17/2025

Haigh Decl., Exh. 1, p. 5.) The Foxes do

not argue in opposition that Interstate 605 is not a freeway, that their property is not across Valley Boulevard from a ramp to Interstate 605, or that

Caltrans has the authority to deny access permits near freeway

interchanges. (See generally Opp.;

see also *Moulton Niguel Water Dist.*, *supra*, at 1215.) Instead, the Foxes focus on access to Valley

Boulevard and emphasize that Valley Boulevard is a public street, not a freeway. (See Opp., pp. 13, 16.) Since the Caltrans Highway Design Manual was not adopted as a regulation and filed with the Secretary of State, LA Metro cannot enforce its provisions against the Foxes. (See Opp., p. 13.) Nevertheless, Caltrans may use the manual to determine whether to deny vehicle access to the Foxes' property because of its location in relation to the Interstate 605 ramp.

Even so, the relevant section of the manual states:

Access rights

shall be acquired along interchange ramps to their junction with the nearest public road. . . . For new construction or major reconstruction, access rights shall be acquired on the opposite side of the local road from ramp terminals to preclude driveways or local roads within the ramp intersection. This access control would limit the volume of traffic and the number of phases at the intersection of the ramp and local facility, thereby optimizing capacity and operation of the ramp. Through a combination of access control and the use of raised median islands along the local facility, right-in/right-out access may be permitted beyond 200 feet from the ramp intersection. (1/7/2025 Haigh Decl., Exh. B, pp. 6–7.)

LA Metro emphasizes that according to this provision, Caltrans may deny a property across the street from a freeway ramp from accessing the street. (See Mot., p. 8; see also 12/17/2025 Haigh Decl., Exh. 1, p. 5, depicting the property in relation to the Interstate 605 ramp.) However, even if the court accepts LA Metro's contention that the access control restrictions extend across the entire length of the property's potential access to Valley Boulevard, LA Metro nevertheless concedes that "it falls within Caltrans' discretionary authority to apply access control. . . ." (Reply, p. 9.) In other words, while the manual permits Caltrans to deny access to Valley Boulevard from the Foxes' property, the manual does not preclude access to Valley Boulevard from the property as a matter of law; it is a matter of Caltrans's discretion. Even though LA Metro states that the project exceptions it received for vehicle access to Valley Boulevard are "prospective and legally distinct," the existence of exceptions at least suggests that Caltrans sometimes exercises its discretion to allow access to public streets across the street from freeway ramps.

(Reply, p. 9.)

Considering

the parties' briefs and oral arguments at the previous hearing, the court asked the parties to address in their supplemental briefs whether the Foxes' have access to Valley Boulevard as a matter of right, considering the restrictions provided under the Caltrans Highway Design Manual.

(See 6/24/2026 Min. Order, p. 1.)

After considering the parties' supplemental briefing, the court is not inclined to change its tentative ruling.

The Foxes do not have access to Valley Boulevard as a matter of right; their access to Valley Boulevard is subject to Caltrans's discretion. But since the manual is not the law and since the discretion properly belongs to Caltrans, LA Metro cannot enforce the manual to preclude the Foxes' access to Valley Boulevard.

Thus,

the court does not determine that the property does not have a legal means of accessing Valley Boulevard.

Therefore,

the motion for determination is GRANTED IN PART and DENIED IN PART.

CONCLUSION

For

these reasons, the motion for determination of legal issues re: impairment of access is GRANTED IN PART as to whether the property abuts Valley Boulevard and DENIED IN PART as to whether the property has a legal means of accessing Valley Boulevard.